

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1618 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Reading Clerk

Amendment submitted by: Erick Harris

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 1618

By: Gollihare of the Senate

and

Harris and Moore of the
House

FLOOR SUBSTITUTE

An Act relating to the criminal procedure; creating the Public Protection Act; amending 22 O.S. 2021, Section 1105.2, which relates to conditions of release; defining term; authorizing inclusion of certain information in public safety report; allowing courts to utilize public safety reports to determine release conditions; providing an exception; requiring submission of public safety report to defense counsel upon request; updating statutory language; updating statutory references; providing for noncodification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Public Protection Act".

SECTION 2. AMENDATORY 22 O.S. 2021, Section 1105.2, is amended to read as follows:

1 Section 1105.2. A. For the purposes of this section, "public
2 safety report" means a risk assessment tool administered by a
3 pretrial release program, as set forth in Section 1105.3 of this
4 title, that predicts the likelihood of the risk of failure of a
5 defendant to appear in court or risk of being arrested for a new
6 crime during the pretrial period. The public safety report may:

7 1. State the requirements for setting bail under Section 1101
8 of this title;

9 2. Provide the name and date of birth of the defendant or, if
10 impracticable, other identifying information, the cause number of
11 the case, if available, and the offense for which the defendant was
12 arrested;

13 3. Provide information on the eligibility of the defendant for
14 a cash bond;

15 4. Provide information regarding the applicability of any
16 required or discretionary bond conditions; and

17 5. Provide, in summary form, the criminal history of the
18 defendant, including information regarding any:

19 a. previous misdemeanor or felony convictions,

20 b. pending charges,

21 c. previous sentences imposing a term of confinement,

22 d. previous convictions or pending charges for:

1 (1) offenses that are deemed violent crimes as
2 defined in Section 571 of Title 57 of the
3 Oklahoma Statutes, or

4 (2) offenses involving violence directed against a
5 peace officer,

6 e. previous failures of the defendant to appear in court
7 following release on bail,

8 f. whether the defendant is currently on community
9 supervision, parole, or mandatory supervision for an
10 offense,

11 g. whether the defendant is currently released on bail or
12 participating in a pretrial release program and any
13 conditions of that release or participation,

14 h. outstanding warrants for the arrest of the defendant
15 that have been entered into the National Crime
16 Information Center database or the Oklahoma Law
17 Enforcement Telecommunications System, and

18 i. any current protective orders, as provided in the
19 Protection from Domestic Abuse Act, for which the
20 defendant is the subject.

21 B. Following an arrest for a misdemeanor or felony offense and
22 before formal charges have been filed or an indictment made, the
23 arrested person may have bail set by the court as provided in this
24

1 ~~act~~ section; provided there are no provisions of law to the
2 contrary.

3 ~~B.~~ C. When formal charges or an indictment has been filed, bail
4 shall be set according to law and the pretrial bond, if any, may be
5 reaffirmed unless additional security is required. Every judicial
6 district may, upon the order of the presiding judge for the
7 district, establish a pretrial bail schedule for felony or
8 misdemeanor offenses, except for traffic, wildlife, or water safety
9 offenses included in subsections B, C and D of Section 1115.3 of
10 ~~Title 22 of the Oklahoma Statutes~~ this title and those offenses
11 specifically excluded herein. The bail schedule ~~established~~
12 ~~pursuant to the authority of this act~~ shall exclude any offense for
13 which bail is not allowed by law. The bail schedule ~~authorized by~~
14 ~~this act~~ shall be set in accordance with guidelines relating to bail
15 and shall be published and reviewed by March 1 of each year by the
16 courts and district attorney of the judicial district.

17 ~~C.~~ D. The court may utilize a public safety report to assist in
18 determining release conditions for a defendant; provided, however,
19 if a defendant has been charged with a violent crime, as defined in
20 Section 571 of Title 57 of the Oklahoma Statutes, the court shall
21 utilize a public safety report to assist in determining release
22 conditions for said defendant. The results of the public safety
23 report shall not be used as the sole basis to grant or deny pretrial
24

1 release. Upon request, results of the public safety report shall be
2 provided to defense counsel and to counsel for the state.

3 E. The pretrial bail shall be set in a numerical dollar amount.
4 If the person fails to appear in court as required the judge shall:

5 1. Rescind the bond and proceed to enter a judgment against the
6 defendant for the dollar amount of the pretrial bail if no private
7 bail was given at the time of release; provided, however, the court
8 clerk shall follow the procedures as set forth in Section 1301 et
9 seq. of Title 59 of the Oklahoma Statutes in collecting the
10 forfeiture amount against the person who fails to appear in court;
11 or

12 2. Rescind and forfeit the private bail if cash, property or
13 surety bail was furnished at the time of release as set forth in
14 Section 1301 et seq. of Title 59 of the Oklahoma Statutes.

15 ~~D.~~ F. When a pretrial program exists in the judicial district
16 where the person is being held, the ~~judge~~ court may utilize the
17 services of the pretrial release program when ordering pretrial
18 release, except when private bail has been furnished.

19 ~~E.~~ G. Upon an order for pretrial release or release on bond,
20 the person shall be released from custody without undue delay.

21 ~~F.~~ H. The court may require the person to be placed on an
22 electronic monitoring device as a condition of pretrial release.

23 ~~G.~~ I. In instances where an electronic monitoring device has
24 been ordered, the court may impose payment of a supervision fee.

1 Payment of the fee, in whole or according to a court-ordered
2 installment schedule, shall be a condition of pretrial release. The
3 court clerk shall collect the supervision fees.

4 SECTION 3. This act shall become effective January 1, 2027.

5
6 60-2-17543 GRS 04/28/26
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24